

for property taxes paid by the landlord with respect to a mobile home owned by the tenant and the landlord obtains information from the Municipal Property Assessment Corporation with respect to the value of the mobile home for assessment purposes, the landlord shall promptly provide the tenant with a copy of that information. 2006, c. 17, s. 155 (1).

Suspension of tenant's obligation to pay

(2) A tenant's obligation to pay the landlord an amount to reimburse the landlord for property taxes paid by the landlord with respect to a mobile home owned by the tenant is suspended, and the landlord shall not require the tenant to pay that amount, if,

- (a) the landlord has failed to comply with subsection (1) with respect to the most recent information obtained by the landlord from the Municipal Property Assessment Corporation; or
- (b) the landlord has not, in the previous 12 months, obtained written information from the Municipal Property Assessment Corporation with respect to the value of the mobile home for assessment purposes. 2006, c. 17, s. 155 (2).

Exception

(3) Clause (2) (b) does not apply if the landlord has made reasonable efforts in the previous 12 months to obtain written information from the Municipal Property Assessment Corporation with respect to the value of the mobile home for assessment purposes but has been unable to obtain the information. 2006, c. 17, s. 155 (3).

After compliance

(4) The landlord may require the tenant to pay any amount withheld by the tenant under subsection (2) after,

- (a) complying with subsection (1), if clause (2) (a) applied; or
- (b) obtaining written information from the Municipal Property Assessment Corporation with respect to the value of the mobile home for assessment purposes and complying with subsection (1), if clause (2) (b) applied. 2006, c. 17, s. 155 (4).

Tenant's right to sell, etc.

156 (1) A tenant has the right to sell or lease his or her mobile home without the landlord's consent. 2006, c. 17, s. 156 (1).

Landlord as agent

(2) A landlord may act as the agent of a tenant in negotiations to sell or lease a mobile home only in accordance with a written agency contract entered into for the purpose of beginning those negotiations. 2006, c. 17, s. 156 (2).

Same

(3) A provision in a tenancy agreement requiring a tenant who owns a mobile home to use the landlord as an agent for the sale of the mobile home is void. 2006, c. 17, s. 156 (3).

Landlord's right of first refusal

157 (1) This section applies if a tenancy agreement with respect to a mobile home contains a provision prohibiting the tenant from selling the mobile home without first offering to sell it to the landlord. 2006, c. 17, s. 157 (1).

Same

(2) If a tenant receives an acceptable offer to purchase a mobile home, the landlord has a right of first refusal to purchase the mobile home at the price and subject to the terms and conditions in the offer. 2006, c. 17, s. 157 (2).

Same

(3) A tenant shall give a landlord at least 72 hours notice of a person's offer to purchase a mobile home before accepting the person's offer. 2006, c. 17, s. 157 (3).

Landlord's purchase at reduced price

(4) If a provision described in subsection (1) permits a landlord to purchase a mobile home at a price that is less than the one contained in a prospective purchaser's offer to purchase, the landlord may exercise the option to purchase the mobile home, but the provision is void with respect to the landlord's right to purchase the mobile home at the lesser price. 2006, c. 17, s. 157 (4).

Advertising a sale

For sale signs

158 (1) A landlord shall not prevent a tenant who owns a mobile home from placing in a window of the mobile home a sign that the home is for sale, unless the landlord does so in accordance with subsection (2). 2006, c. 17, s. 158 (1).

Alternative method of advertising a sale

(2) A landlord may prevent a tenant who owns a mobile home from placing a for sale sign in a window of a mobile home if all of the following conditions are met:

1. The prohibition applies to all tenants in the mobile home park.
2. The landlord provides a bulletin board for the purpose of placing for sale advertisements.
3. The bulletin board is provided to all tenants in the mobile home park free of charge.
4. The bulletin board is placed in a prominent place and is accessible to the public at all reasonable times. 2006, c. 17, s. 158 (2).

Assignment

159 (1) If a tenant has sold or entered into an agreement to sell the tenant's mobile home and the tenant asks the landlord to consent to the assignment of the site for the mobile home to the purchaser of the mobile home,

- (a) clause 95 (3) (c) does not apply; and
- (b) the landlord may not refuse consent to the assignment unless, on application under subsection (2), the Board determines that the landlord's grounds for refusing consent are reasonable. 2006, c. 17, s. 159 (1).

Time for application

(2) The landlord may apply to the Board, within 15 days after the tenant asks the landlord to consent to the assignment, for a determination of whether the landlord's grounds for refusing consent are reasonable. 2006, c. 17, s. 159 (2).

Contents of application

(3) The landlord shall set out in the application the landlord's grounds for refusing consent. 2006, c. 17, s. 159 (3).

Deemed consent

(4) If the landlord does not apply to the Board in accordance with subsections (2) and (3), or the Board determines that the landlord's grounds for refusing consent are not reasonable, the landlord shall be deemed to have consented to the assignment. 2006, c. 17, s. 159 (4).

Restraint of trade prohibited

160 (1) A landlord shall not restrict the right of a tenant to purchase goods or services from the person of his or her choice, except as provided in subsection (2). 2006, c. 17, s. 160 (1).

Standards

(2) A landlord may set reasonable standards for mobile home equipment. 2006, c. 17, s. 160 (2).

Responsibility of landlord

161 In addition to a landlord's obligations under section 20, a landlord is responsible for,

- (a) removing or disposing of garbage or ensuring the availability of a means for removing or disposing of garbage in the mobile home park at reasonable intervals;
- (b) maintaining mobile home park roads in a good state of repair;
- (c) removing snow from mobile home park roads;
- (d) maintaining the water supply, sewage disposal, fuel, drainage and electrical systems in the mobile home park in a good state of repair;
- (e) maintaining the mobile home park grounds and all buildings, structures, enclosures and equipment intended for the common use of tenants in a good state of repair; and
- (f) repairing damage to a tenant's property, if the damage is caused by the wilful or negligent conduct of the landlord. 2006, c. 17, s. 161.

TERMINATION OF TENANCIES

Mobile home abandoned

162 (1) This section applies if,

- (a) the tenant has vacated the mobile home in accordance with,
 - (i) a notice of termination of the landlord or the tenant,
 - (ii) an agreement between the landlord and tenant to terminate the tenancy, or
 - (iii) an order of the Board terminating the tenancy or evicting the tenant; or
- (b) the landlord has applied for an order under section 79 and the Board has made an order terminating the tenancy. 2006, c. 17, s. 162 (1).

Notice to tenant

(2) The landlord shall not dispose of a mobile home without first notifying the tenant of the landlord's intention to do so,

- (a) by registered mail, sent to the tenant's last known mailing address; and
- (b) by causing a notice to be published in a newspaper having general circulation in the locality in which the mobile home park is located. 2006, c. 17, s. 162 (2).

Landlord may dispose of mobile home

(3) The landlord may sell, retain for the landlord's own use or dispose of a mobile home in the circumstances described in subsection (1) beginning 60 days after the notices referred to in subsection (2) have been given if the tenant has not made a claim with respect to the landlord's intended disposal. 2006, c. 17, s. 162 (3).

Same

(4) If, within six months after the day the notices have been given under subsection (2), the tenant makes a claim for a mobile home which the landlord has already sold, the landlord shall pay to the tenant the amount by which the proceeds of sale exceed the sum of,

- (a) the landlord's reasonable out-of-pocket expenses incurred with respect to the mobile home; and

(b) any arrears of rent of the tenant. 2006, c. 17, s. 162 (4).

Same

(5) If, within six months after the day the notices have been given under subsection (2), the tenant makes a claim for a mobile home which the landlord has retained for the landlord's own use, the landlord shall return the mobile home to the tenant. 2006, c. 17, s. 162 (5).

Same

(6) Before returning a mobile home to a tenant who claims it within the 60 days referred to in subsection (3) or the six months referred to in subsection (5), the landlord may require the tenant to pay the landlord for arrears of rent and any reasonable expenses incurred by the landlord with respect to the mobile home. 2006, c. 17, s. 162 (6).

No liability

(7) Subject to subsection (4) or (5), a landlord is not liable to any person for selling, retaining or otherwise disposing of a tenant's mobile home in accordance with this section. 2006, c. 17, s. 162 (7).

Death of mobile home owner

163 Sections 91 and 92 do not apply if the tenant owns the mobile home. 2006, c. 17, s. 163.

Termination under s. 50

164 (1) If a notice of termination is given under section 50 with respect to a tenancy agreement between the landlord and a tenant who owns a mobile home, the date for termination specified in the notice shall, despite subsection 50 (2), be at least one year after the date the notice is given and shall be the day a period of the tenancy ends or, where the tenancy is for a fixed term, the end of the term. 2006, c. 17, s. 164 (1).

Same

(2) If a notice of termination is given under section 50 with respect to a tenancy

agreement between the landlord and a tenant who owns a mobile home and the tenant is entitled to compensation under section 52, 54 or 55, the amount of the compensation shall, despite those sections, be equal to the lesser of the following amounts:

1. One year's rent.
2. \$3,000 or the prescribed amount, whichever is greater. 2006, c. 17, s. 164 (2).

RULES RELATED TO RENT AND OTHER CHARGES

Assignment of existing tenancy agreement

165 Despite subsection 95 (8), if a tenancy agreement for a site for a mobile home is assigned and the assignee purchases or enters into an agreement to purchase the former tenant's mobile home, the landlord may increase the rent payable by the assignee under the tenancy agreement by not more than the prescribed amount. 2006, c. 17, s. 165.

Note: On a day to be named by proclamation of the Lieutenant Governor, the Act is amended by adding the following section: (See: 2020, c. 16, Sched. 4, s. 26)

Exclusion from rent

165.1 (1) This section applies with respect to an amount that a landlord charges a tenant under the terms of a written agreement for any prescribed services and facilities or any prescribed privilege, accommodation or thing that the landlord provides for the tenant in respect of the occupancy of the site for a mobile home. 2020, c. 16, Sched. 4, s. 26.

Not within the definition of "rent"

(2) On and after the applicable prescribed date and if the prescribed circumstances apply,

- (a) the prescribed services and facilities or the prescribed privilege, accommodation or thing shall not be considered to be services and facilities or a privilege, accommodation or thing that fall within the definition of "rent" in subsection 2 (1); and
- (b) the amount charged by the landlord for the prescribed services and facilities or the prescribed privilege, accommodation or thing shall not be

included in the rent charged to the tenant. 2020, c. 16, Sched. 4, s. 26.

Reduction of rent

(3) If the rent charged to a tenant immediately before the applicable date referred to in subsection (2) includes an amount to which that subsection applies, the landlord shall reduce the rent charged to the tenant in accordance with the prescribed rules. 2020, c. 16, Sched. 4, s. 26.

Application

(4) For greater certainty, this section applies with respect to an agreement referred to in subsection (1) whether the agreement is a tenancy agreement or any other agreement entered into between a landlord and a tenant. 2020, c. 16, Sched. 4, s. 26.

Same

(5) For greater certainty, this section applies with respect to an agreement referred to in subsection (1) even if the agreement was entered into before the day section 26 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force. 2020, c. 16, Sched. 4, s. 26.

▼ Section Amendments with date in force (d/m/y)

Entrance and exit fees limited

166 A landlord shall not charge for any of the following matters, except to the extent of the landlord's reasonable out-of-pocket expenses incurred with regard to those matters:

1. The entry of a mobile home into a mobile home park.
2. The exit of a mobile home from a mobile home park.
3. The installation of a mobile home in a mobile home park.
4. The removal of a mobile home from a mobile home park.
5. The testing of water or sewage in a mobile home park. 2006, c. 17, s. 166.

Increased capital expenditures

167 (1) If the Board finds that a capital expenditure is for infrastructure work required to be carried out by the Government of Canada or Ontario or a municipality or an

agency of any of them, despite subsection 126 (11), the Board may determine the number of years over which the rent increase justified by that capital expenditure may be taken. 2006, c. 17, s. 167 (1).

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 167 (1) of the Act is repealed and the following substituted: (See: 2020, c. 16, Sched. 4, s. 27)

Increased capital expenditures

(1) If, on an application made under section 126 on or after the day section 27 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force, the Board finds that a capital expenditure is for infrastructure work, the Board may, despite subsection 126 (11) but in accordance with the prescribed rules,

- (a) determine the number of years over which the rent increase justified by the capital expenditure may be taken; and
- (b) determine the percentage increase justified by the capital expenditure that may be taken in each year described in clause (a). 2020, c. 16, Sched. 4, s. 27.

Same

(1.1) For greater certainty, the number of years determined under clause (1) (a) may be less than, equal to or greater than three. 2020, c. 16, Sched. 4, s. 27.

Same

(1.2) For greater certainty, the percentage increase determined under clause (1) (b) may be less than, equal to or greater than 3 per cent in any given year and need not be the same for each year. 2020, c. 16, Sched. 4, s. 27.

Definition

(2) In this section,

“infrastructure work” means work with respect to roads, water supply, fuel, sewage disposal, drainage, electrical systems and other prescribed services and things provided to the mobile home park. 2006, c. 17, s. 167 (2).

▼ Section Amendments with date in force (d/m/y)

PART XI

THE LANDLORD AND TENANT BOARD

Board

168 (1) The Ontario Rental Housing Tribunal is continued under the name Landlord and Tenant Board in English and Commission de la location immobilière in French. 2006, c. 17, s. 168 (1).

Board's jurisdiction

(2) The Board has exclusive jurisdiction to determine all applications under this Act and with respect to all matters in which jurisdiction is conferred on it by this Act. 2006, c. 17, s. 168 (2).

Composition

169 (1) The members of the Board shall be appointed by the Lieutenant Governor in Council. 2006, c. 17, s. 169 (1).

Remuneration and expenses

(2) The members of the Board who are not public servants employed under Part III of the *Public Service of Ontario Act, 2006* shall be paid the remuneration fixed by the Lieutenant Governor in Council and the reasonable expenses incurred in the course of their duties under this Act, as determined by the Minister. 2006, c. 17, s. 169 (2); 2006, c. 35, Sched. C, s. 118 (1).

Public servant members

(3) Members of the Board may be persons who are employed under Part III of the *Public Service of Ontario Act, 2006*. 2006, c. 17, s. 169 (3); 2006, c. 35, Sched. C, s. 118 (2).

▼ Section Amendments with date in force (d/m/y)
